

01

STAGE 01

CONCEPT AND CONSTITUTIONAL FIELD

- Article 324: ECI controls rolls and elections to Parliament, State legislatures, President and Vice-President.
- Articles 325-329: general roll, adult suffrage, legislative powers and election-petition channel.
- Articles 103/192: President/Governor decides specified disqualification after obtaining ECI opinion.
- Articles 243K/243ZA: State Election Commission, not ECI, controls Panchayat and municipal polls.
- Answer line: independent supervision is broad but remains bounded by Constitution, statute and review.

02

STAGE 02

COMPOSITION, HISTORY AND COLLEGIALITY

- CEC + such number of other ECs as President fixes, subject to parliamentary law.
- 1950 single member -> Oct 1989 multi -> Jan 1990 single -> Oct 1993 continuing three-member body.
- CEC is Chairman; unanimity is preferred and differences are decided by majority.
- T.N. Seshan (1995): multi-member Commission and equal decisional status are valid.
- Regional Commissioner: President appoints after consulting ECI; assistance office, not SEC.

03

STAGE 03

CURRENT APPOINTMENT LAW

- Anoop Baranwal (2023): PM + Opposition leader + CJI only until Parliament enacted a law.
- Act 49 of 2023 commenced 2 Jan 2024 and repealed the 1991 Act.
- Search: Law Minister + two Secretary-rank members -> panel of five.
- Select: PM + LoP/largest opposition leader + PM-nominated Union Cabinet Minister.
- President appoints by warrant; section 8 permits consideration beyond the search panel.
- 7 Sep 2026: Act operative; 22 Mar 2024 interim refusal; no located final merits ruling or stay.

STAGE 04

TERM, SERVICE CONDITIONS AND REMOVAL

- Eligibility: Secretary-equivalent rank + integrity + election-management knowledge/experience.
- Term: six years or age 65, whichever earlier; no reappointment; aggregate six-year cap.
- Enacted section 10: salary equal to a Supreme Court judge.
- CEC removal: same manner and grounds as Supreme Court judge.
- Other EC/Regional Commissioner: President only on CEC recommendation.
- Article 324 protects CEC service conditions from disadvantageous variation after appointment.

STAGE 05

SECRETARIAT, STAFF AND ELECTION TIMETABLE

- Article 324(6): President/Governor supplies staff when ECI requests it.
- Constitution does not create a separate election cadre or blanket charged-expenditure clause.
- Schedule announcement -> notification -> nomination -> scrutiny -> withdrawal -> poll -> count -> result.
- Section 151A: by-election ordinarily within six months, subject to exact exceptions.
- Sections 57/58/58A: adjournment, fresh poll and booth-capturing remedies use distinct triggers.

STAGE 06

RPA 1950, ROLLS AND DELIMITATION

- RPA 1950: allocation/constituency framework plus electoral-roll infrastructure.
- Section 19: age and ordinary residence; sections 21-23: revision, correction/deletion and inclusion.
- Four qualifying dates: 1 Jan | 1 Apr | 1 Jul | 1 Oct.
- Roll integrity = include every eligible citizen + delete only through notice and lawful process.
- 2026 INSC 564: limited electoral citizenship inquiry, not final citizenship adjudication.
- Delimitation Commission is a distinct statutory body; ECI participates only as law provides.

07

STAGE 07

RPA 1951: CONDUCT, DISQUALIFICATION AND DISPUTES

- RPA 1951: nominations, polling, expenses, parties, corrupt practices, disqualification and petitions.
- Sections 8-10A supply principal statutory disqualification grounds.
- Lily Thomas (2013): section 8(4) sitting-member shield invalid.
- Section 123 defines corrupt practices; Abhiram Singh (2017) controls identity/religious appeals.
- High Court tries election petitions under sections 80/80A; section 116A appeal lies to Supreme Court.

08

STAGE 08

CANDIDATES, CRIMINALISATION, MONEY AND MEDIA

- ADR (2002) and PUCL (2003): voter right to material candidate information.
- Public Interest Foundation (2018/2020): antecedent publicity and party reasons for selection.
- Candidate expense account/ceiling is distinct from total political-party campaign spending.
- Paid news: evidence -> monitoring -> expense attribution or applicable legal route.
- Social media/deepfakes: ad transparency + MCC + applicable election/criminal/technology law.
- ECI cannot invent new offences, convictions or disqualification grounds.

09

STAGE 09

PARTIES, SYMBOLS AND MODEL CODE

- RPA 1951 section 29A registration != recognition != reserved symbol.
- Institute of Social Welfare (2002): ECI has no general deregistration power; narrow exceptions.
- Symbols Order 1968 paragraph 15 decides recognised-party rival-group claims.
- Kanhiya Lal Omar (1985): Symbols Order is legally valid.
- MCC: non-statutory code from schedule announcement to completion.
- MCC conduct may independently violate RPA, BNS or another statute.

STAGE 10

EVM-VVPAT AND AUDIT

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STAGE 10

EVM-VVPAT AND AUDIT

- Ballot Unit -> Control Unit -> VVPAT display and sealed paper slip -> counting protocol.
- Rule 49MA: alleged mismatch procedure; Rule 56D: application for paper-slip count.
- Subramanian Swamy (2013): VVPAT paper trail supports voter confidence.
- ADR v ECI (26 Apr 2024): no paper-ballot return or universal count; limited safeguards added.
- 7 May 2025 order: diagnostic certification, preservation and candidate-requested protocol.
- Technology answer = architecture + custody + audit + complaint remedy.

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STAGE 11

ARTICLE 324 CASE CODE AND COURT BOUNDARY

- Mohinder Singh Gill (1978): Article 324 is a reservoir where law is silent; recorded reasons matter.
- A.C. Jose (1984): ECI supplements, never supplants, enacted law and rules.
- Ponnuswami (1952): do not derail an election midway; petition is the ordinary challenge.
- Ashok Kumar (2000): limited review may facilitate, but not obstruct, the process.
- President/Vice-President disputes go to Supreme Court under Article 71, not High Court petition.

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STAGE 12

TRAPS, REFORM AND ANSWER SPINE

- Traps: ECI != SEC | CEC vote != superior | six-year term is statutory | registration != recognition.
- Reform: independent search, reasoned selection, stable secretariat and predictable finance.
- Clean rolls, transparent political finance, public MCC reasons and audited digital campaigning.
- Time-bound election courts and evidence-based EVM-VVPAT communication.
- Answer spine: define -> exact source/actor -> claim -> named evidence -> analysis -> qualification.
- Verdict: electoral trust requires administration that is lawful, observable and correctable.